SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
7/02/2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.**

2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/
Meeting ID: 160 135 4419
Password: 845111
Zoom telephone dial-in: +1 (669)-254-5252

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case

2:00 PM
LINE: 1

20-CIV-04800 **MALAK ALSHAQRONI, ET AL VS. EL CAMINO INN, ET AL**

MALAK ALSHAQRONI	**IIAN N. ROSEN JANFAZA**
EL CAMINO INN	**GREGORY R. DE LA PENA**

PLAINTIFFS MALAK ALSHAQRONI AND ZEIAD ENGAB'S MOTION TO COMPEL DEPOSITION OF PERSON MOST QUALIFIED OF DEFENDANT, BALBOA HOTEL LLC dba EL CAMINO INN; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT AND COUNSEL OF RECORD, JOINTLY AND SEVERALLY

TENTATIVE RULING:

Plaintiffs' motion to compel the deposition of Defendant Balboa Hotel LLC dba El Camino Inn's person most qualified ("PMK") is **GRANTED**. Plaintiffs' request for monetary sanctions is **GRANTED.**

Any party may obtain discovery "by taking in California the oral deposition of any person, including any party to the action." (Code Civ. Proc., § 2025.010.) Service of a deposition notice is effective to require a party deponent, or an officer, director, managing agent, or employee of a party, to attend, testify, and produce documents, electronically stored information, or tangible things for inspection and copying. (Id., § 2025.280, subd. (a).) If, after service of a deposition notice, a party-affiliated deponent fails to appear, proceed, or produce documents without having served a valid objection under section 2025.410, the party who gave the notice may move to compel attendance, testimony, and production. (Id., § 2025.450, subd. (a).) The motion must be accompanied by a meet-and-confer declaration or, when the deponent failed to attend, "by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Id., subd. (b)(2); *Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

On November 26, 2025, Plaintiffs served Defendants by email with a Notice of PMK Deposition set for December 10, 2025. (Toma Decl., ¶ 1, Ex. A.) Defense counsel's office replied, "Thank you, Ilan," two days later, on November 28, 2025. (Id., ¶ 3, Ex. B.) That same day, Plaintiffs served an Amended Notice of PMK Deposition moving the scheduled date one day later, to December 11, 2025. (Id., ¶ 4, Ex. C.)

On December 9, 2025, Plaintiffs emailed Defendants to confirm that the PMK deposition would go forward as noticed on December 11, 2025. (Id., ¶ 6, Ex. E.) Defense counsel's office responded that it had December 10 calendared for the deposition and attached a copy of the deposition notice that had been marked with the note, "LCD to object by email: 12/4/25." (Id., ¶ 7, Ex. E.) Plaintiffs responded that the amended notice had been sent to the same email addresses as the initial notice. (Id., ¶ 8, Ex. E.)

Defense counsel contacted Plaintiffs' counsel on December 9 and 10, 2025, stating on both occasions that service was defective and that Plaintiffs' counsel had not consulted on mutually agreeable dates before serving the notice. Defense counsel stated that, for those reasons, Defendants would not produce a witness for deposition. (Id., ¶¶ 9, 12, Exs. F, G.) On both occasions, Defendants' counsel did not provide any alternative dates for the deposition. (Ibid.)

Defendants did not oppose this motion. The Court is not persuaded by the reasons Defendants gave before the motion was filed. Although consulting with opposing counsel regarding deposition availability before serving a deposition notice is a common courtesy, nothing in Code of Civil Procedure section 2025.230 requires the noticing party to confer about the deposition date before serving notice.

A party served with a deposition notice waives any error or irregularity in the notice unless that party promptly serves a written objection specifying the error or irregularity at least three calendar days before the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).) Defendants did not serve a timely written objection, move to stay and quash the notice, or seek an ex parte order extending time. (See id., subd. (c).)

Defendants apparently told Plaintiffs that they accept service only at calendaring@dlphlaw.com, which was not included among the email addresses used by Plaintiffs. (Toma Decl., Ex. F.) However, defense counsel's office acknowledged service of Plaintiffs' initial notice by replying, "Thank you, Ilan." (Id., Ex. B.) Within two hours of that acknowledgment, Plaintiffs sent an amended notice moving the deposition date one day later. (Id., Ex. C.) When confusion regarding the date arose, Defendants acknowledged that the initial date, December 10, 2025, was on their calendar and sent Plaintiffs a copy of the deposition notice on which they had added the note, "LCD to object by email: 12/4." (Id., Ex. E.)

Based on those facts, the Court finds that Defendants accepted service at the email addresses to which Plaintiffs served the notices and had ample time to object, meet and confer, or seek relief from the Court if the parties could not agree to a different date. Defendants failed to do so and had no lawful basis to refuse to appear and produce a PMK witness at the deposition.

If a motion to compel under Code of Civil Procedure section 2025.450, subdivision (a), is granted, the Court must impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) The Court may also impose monetary sanctions against an attorney advising misuse of the discovery process. (Id., § 2023.030, subd. (a).)

Plaintiffs request $2,850 in attorney's fees for six hours of work on this motion at $475 per hour, plus the $60 filing fee, for a subtotal of $2,910. Plaintiffs also request $1,074.80 for the stenographer's cost for the deposition at which Defendants did not appear. (Toma Decl., ¶¶ 14-20, Exs. H, I.)

Plaintiffs' attorney's fees request includes two hours of estimated time for preparing a reply to any opposition and attending the hearing. Because Defendants did not file an opposition, the estimated fee for those two hours will not be incurred and is excluded.

Accordingly, Plaintiffs' motion to compel is **GRANTED**. After serving notice of the order on this motion, Plaintiffs may serve a new notice resetting the PMK deposition that had previously been scheduled for December 11, 2025.

Plaintiffs' request for sanctions is **GRANTED** in the amount of $1,900 in attorney's fees (four hours at $475 per hour) and $1,134.80 in costs for the filing fee and stenographer's fee, for total sanctions of $3,034.80 against the Law Offices of De la Pena and Holiday, LLP and Defendant Balboa Hotel LLC dba El Camino Inn, jointly and severally.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 2
23-CIV-00632 AIXTEK, A CALIFORNIA CORPORATION VS. THE COUNTY OF SAN MATEO

AIXTEK, A CALIFORNIA CORPORATION **JOHN PETER SHEARER**
THE COUNTY OF SAN MATEO **DANIEL T. MCCLOSKEY**

DEFENDANT COUNTY OF SAN MATEO'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSION NOS. 33 43 AND CORRESPONDING FORM INTERROGATORIES, SET TWO

TENTATIVE RULING:

The Court does not decide the merits of the County's Motion to Compel Further Responses to Request for Admission Nos. 33–43 and Corresponding Form Interrogatories, Set Two. That motion concerns discovery responses, discovery objections, Form Interrogatory No. 17.1, and related monetary sanctions, and it is likewise within the scope of the discovery referee's appointment. The motion is referred back to the Honorable Timothy R. Volkmann (Ret.) for ruling.

Nothing in this order expresses any view on whether the County's motion to compel should be granted or denied, whether further responses should be ordered, whether RFAs should be deemed admitted, or whether sanctions should be imposed. Those determinations shall be made by the discovery referee in the first instance under the existing reference order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 3
23-CIV-00632 AIXTEK, A CALIFORNIA CORPORATION VS. THE COUNTY OF SAN MATEO

AIXTEK, A CALIFORNIA CORPORATION	**JOHN PETER SHEARER**
THE COUNTY OF SAN MATEO	**DANIEL T. MCCLOSKEY**

DEFENDANT COUNTY OF SAN MATEO'S MOTION FOR SANCTIONS RE: DEPOSITIONS OF JOHN AND PATRICIA EATON

TENTATIVE RULING:

County of San Mateo's Motion to Withdraw Stipulation for the Appointment of a Discovery Referee and to Set a Hearing on the Motion for Terminating Sanctions is **DENIED.**

The Court finds that the County has not shown good cause under California Rules of Court, rule 3.906 to withdraw from the stipulation for appointment of the discovery referee or to vacate the reference. The County's disagreement with the referee's handling of the terminating-sanctions request does not constitute good cause to withdraw the stipulation.

The Court does not decide the merits of the County's request for terminating sanctions. That issue remains within the scope of the existing discovery reference and shall be decided by the discovery referee in the first instance.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 4
23-CIV-00632 AIXTEK, A CALIFORNIA CORPORATION VS. THE COUNTY OF SAN MATEO

AIXTEK, A CALIFORNIA CORPORATION	**JOHN PETER SHEARER**
THE COUNTY OF SAN MATEO	**DANIEL T. MCCLOSKEY**

COUNTY OF SAN MATEO'S MOTION TO WITHDRAW STIPULATION FOR THE APPOINTMENT OF A DISCOVERY REFEREE AND TO SET A HEARING ON THE MOTION FOR TERMINATING SANCTIONS

TENTATIVE RULING:

Defendant/Cross-Complainant County of San Mateo's ("County") Notice of Motion and Motion for Sanctions Re Depositions of John and Patricia Eaton (the "Motion") is **CONTINUED** pending resolution of the pending appeal.

The operative Complaint alleges that Plaintiff is an information technology contractor that performed work for Defendant for more than 15 years. The Complaint further alleges that Plaintiff performed under two contracts—one for project-management-related services and another for network- and cybersecurity-related services—but Defendant breached those contracts by failing to pay for a significant portion of the services provided.

The operative First Amended Cross-Complaint ("FACC"), filed by the County against Patricia Christine Eaton and John Monroe Eaton (the "Eatons"), who are officers and directors of Plaintiff, and against Plaintiff, alleges that the County's taxpayers paid $2 million to Cross-Defendants to connect the County's buildings with fiber-optic cable but received nothing for that investment. Cross-Defendants allegedly claimed that the fiber-optic cable had been connected when it had not. After a new Chief Security Officer ("CSO") took over the County's Information Services Department ("ISD") at the end of 2021, the CSO initiated an audit to map the County's network infrastructure, including its fiber-optic lines. ISD staff searched for the fiber-optic lines that Plaintiff was paid to install but did not find a single one. When confronted, Cross-Defendants allegedly made shifting excuses and failed to provide an explanation for their failure to provide the contracted-for services.

The Court appointed a Discovery Referee by order signed on June 3, 2025, and filed on June 9, 2025. On April 22, 2026, the Discovery Referee issued the Discovery Referee's Statement of Decision Re: County's Motion for Sanctions Re Depositions of John and Patricia Eaton (the "Statement of Decision"). After reviewing "all pleadings, all declarations, the seventy exhibits attached to the Motion, the Opposition with declarations, and the Reply and the Sur Reply, along with subsequent declarations," the Discovery Referee granted in part the County's motion to sanction Cross-Defendants John Eaton and Patricia Eaton and their counsel for discovery abuses, including the Eatons' failure to appear for deposition. (Statement of Decision, 1:7-9 & 6:1-13.) The Discovery Referee awarded $21,612 in monetary sanctions but declined to strike Cross-Defendants' Answer to the FACC because that relief would result in a judgment on the FACC, which "should be the purview of the Judge supervising this case." (Id., 6:3-4.)

A Notice of Appeal filed on June 23, 2026 states that the appeal is from "[o]nly the monetary sanctions part against the filing counsel only[.]" The Court filed a Notice of Filing of Appeal on June 26, 2026.

On February 24, 2026, the County filed in this action the Motion, which appears to be the same motion presented to the Discovery Referee, as are the other accompanying papers, including the Proposed Order. The County also filed a Reply in this action on March 23, 2026. Through April 7, 2026, the County continued to file additional declarations in support of the Motion, which, as noted above, were considered by the Discovery Referee.

The Reply appears to quote from the Opposition, but the quoted language does not appear in the Opposition. Nor does a Declaration of Peter Shearer in Opposition, which the Reply references, appear in the Court's record. (See, e.g., Reply, 1:24-25, 2:22-23, 2:28 n.1 & 4:14-16.) In fact, the Opposition was filed on June 23, 2026, three months after the March 23, 2026 Reply. No reply to the Opposition appears in the Court's records.

By the Motion, the County asks the Discovery Referee, and now the Court, to strike Cross-Defendants' Answer to the FACC and to award monetary sanctions against Cross-Defendants and their counsel.

Because the appealed monetary-sanctions order exceeds $5,000, it is appealable. (Code Civ. Proc., § 904.1, subd. (a)(12).) The perfecting of an appeal stays trial-court proceedings on the order appealed from and on matters embraced in or affected by that order, although the Court may proceed on matters not affected by the appeal. (Code Civ. Proc., § 916, subd. (a).) Here, the monetary-sanctions issue is part of the Motion and is now on appeal. Accordingly, the Court **CONTINUES** the hearing on the Motion pending resolution of the appeal.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 5
23-CIV-04358 DONALD V. RYAN VS. DOUGLAS J. RYAN, ET AL

DONALD V. RYAN	**KATHLEEN E. FINNERTY**
DOUGLAS J. RYAN	**THOMAS C TAGLIARINI**

DEFENDANT DOUGLAS RYAN'S MOTION REQUESTING AN ORDER REGARDING DISTRIBUTION OF SALE PROCEEDS AND RELATED RELIEF [CCP 873.820, 873.850]

TENTATIVE RULING:

Defendant Douglas J. Ryan's Motion Requesting an Order Regarding Distribution of Sale Proceeds and Related Relief is **DROPPED AS MOOT.**

This is a partition action concerning real property located at 1735 Crockett Lane in Hillsborough, California (the "property"). Plaintiff Donald V. Ryan ("Donald") and Defendant Douglas J. Ryan ("Douglas") are siblings. Donald and Douglas each hold an undivided one-seventh interest as tenants in common, along with five other siblings: Barbara E. Poole, Margaret A. Ryan, Michael D. Ryan, Richard J. Ryan, and Roberta L. Ryan. The Court granted Donald's motion for interlocutory judgment of partition on May 12, 2025, and entered the Interlocutory Judgment on June 4, 2025. On May 7, 2026, the Court denied without prejudice Michael D. Ryan's and Douglas's prior motion regarding distribution of sale proceeds.

On May 13, 2026, Douglas filed the present motion. Douglas seeks an order permitting the sale proceeds allocable to all co-owners other than Donald to be distributed through escrow in the ordinary course, while Donald's allocable share is deposited into the Barbara W. Ryan Revocable Trust or, alternatively, held in escrow pending further order.

After Douglas filed this motion, the Court granted in part Douglas's ex parte application on May 15, 2026. The May 15, 2026 order provides that the sale may proceed; proceeds allocable to co-owners other than Donald may be distributed through escrow in the ordinary course, subject to customary costs, charges, liens, and closing adjustments; and Donald's allocable share shall be deposited into an interest-bearing blocked escrow or other neutral account pending further order. (May 15, 2026 Order.) The Court also stated that it was not finally adjudicating any party's claims, defenses, offsets, credits, reimbursement claims, contribution claims, trust claims, or arguments concerning the validity, enforceability, or scope of the alleged agreements. (Ibid.)

The Court then signed an Amended Order on Douglas's Motion Authorizing Sale of Real Property and Directing the Disposition of Proceeds on June 9, 2026. That order directs escrow to disburse the net sale proceeds to a Schwab interest-bearing account requiring the signatures of both Donald's attorney and Douglas's attorney for any withdrawals. (June 9, 2026 Order, ¶ 7.) Thus, the Court has already addressed the disposition of proceeds requested by this motion, including the treatment of Donald's allocable share. Nothing remains to be decided on the pending motion. The motion is therefore **DROPPED AS MOOT**.

To the extent the parties' supplemental papers address whether Douglas's or Michael's share of the sale proceeds should be withheld, that issue is not properly before the Court. Donald first raised that request in a supplemental opposition filed on June 18, 2026. The Court did not authorize supplemental briefing on this motion. Even if the Court considered the supplemental papers, no noticed motion has been filed and served seeking an order withholding Douglas's or Michael's allocable share. Accordingly, the Court does not reach that issue.

If any party later files a properly noticed motion concerning disposition of sale proceeds, the moving party shall address the statutory order of application under Code of Civil Procedure section 873.820. Under that section, sale proceeds must be applied first to expenses of sale; second to other costs of partition, in whole or in part, or to secure any cost of partition later allowed; third to liens on the property in order of priority, except liens that under the terms of sale remain on the property; and fourth to distribution of the residue among the parties in proportion to their shares as determined by the Court. (Code Civ. Proc., § 873.820, subds. (a)-(d).) Any future motion should identify, with supporting evidence, the amounts paid or proposed to be paid under section 873.820, subdivisions (a)-(c), the net residue available for distribution, and the requested distribution amount for each party. If partition costs are at issue, the moving party should also address sections 874.040 and, if applicable, 874.321.5.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 6

24-CLJ-02154 DISCOVER BANK VS. TERRY OLGIN

DISCOVER BANK **HARVEY M. MOORE**
TERRY OLGIN

PLAINTIFF DISCOVERY BANK'S MOTION TO (1) SET ASIDE NOTICE OF SETTLEMENT AND (2) ENTER JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

Plaintiff Discover Bank's Motion to Set Aside Notice of Settlement and Enter Judgment is **DENIED without prejudice** for lack of proof of service.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 7
25-CIV-02956 **HELEN NASSER ELDDIN, ET AL VS. DAVID SZETO, ET AL**

HELEN NASSER ELDDIN	**NICOLAS V. SAENZ**
DAVID SZETO	**EDWARD C SINGER**

DEFENDANTS DARLING AMPIE, DAVID SZETO, GERMAN LEDEZMA, LEDEZMA & SONS, INC., AND MAHOGANY INVESTMENTS PACIFIC'S DEMURRER TO PLAINTIFF HELEN NASSER ELDDIN and PCHRG, INC.'s FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The demurrer filed by Defendants David Szeto, Mahogany Investment Pacifica, LLC, German Ledezma, Darling Ampie, and Ledezma & Sons, Inc. to Plaintiffs PCHRG, Inc. and Helen Nasser Elddin's First Amended Complaint is **SUSTAINED in part** and **OVERRULED in part**.

Plaintiffs PCHRG, Inc. and Helen Nasser Elddin may file a second amended complaint no later than 10 days after service of written notice of entry of the formal order. (Cal. Rules of Court, rule 3.1320(g).)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714-715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A demurrer may be made to the entire complaint or to any cause of action stated therein. (Code Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, the Court accepts the factual allegations of the complaint and matters that may be judicially noticed, but disregards contentions, deductions, and conclusions of law. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The complaint must be given a reasonable interpretation and read as a whole, with its parts considered in context. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The complaint is construed liberally (Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged are accepted as true. (*Cundiff v. GTE California, Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

COMPULSORY CROSS-COMPLAINT BAR

Defendant Mahogany Investment Pacifica, LLC ("Mahogany") contends that each cause of action asserted against it in the First Amended Complaint ("FAC") is barred by Code of Civil Procedure section 426.30.

Section 426.30 provides, in relevant part, that if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action that the party has against the plaintiff at the time the party serves its answer, the party may not later assert that related cause of action in another action. (Code Civ. Proc., § 426.30, subd. (a).) According to Mahogany, the causes of action in the FAC are related to the circumstances underlying the earlier-filed action, Mahogany Investments Pacifica, LLC v. PCHRG, Inc., et al. (Super. Ct. San Mateo County, No. 23CIV04583), and Mahogany requests judicial notice of the complaint and two amended answers filed in that action.

The judicially noticed materials show that both answers were filed by Plaintiff Helen Nasser Elddin in propria persona. Elddin could not appear for or represent Plaintiff PCHRG, Inc. ("PCHRG") because she is not a licensed attorney. (See Feb. 3, 2026 Request for Judicial Notice ("RJN"), Exhs. 2-3; see generally *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145-1152.) The status and effect of those unauthorized answers as to PCHRG therefore is at least uncertain for purposes of applying section 426.30 on demurrer.

In any event, as PCHRG and Elddin correctly point out, the compulsory cross-complaint bar applies only to related causes of action that had accrued when the answer was served. (Code Civ. Proc., § 426.30, subd. (a); *E. L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 505-506.) PCHRG and Elddin argue that none of their present causes of action accrued before November 21, 2023, the date the last answer was filed. (See RJN, Exh. 3, p. 1.) With respect to the earliest apparent accrual date, the FAC alleges that Defendant Rylin Ortiz intentionally destroyed PCHRG's inventory in conspiracy with Defendant David Szeto "in November 2023." (FAC, ¶ 30.) That allegation makes it possible, but not established on the face of the pleadings or judicially noticed materials, that the claim had accrued by November 21, 2023.

More fundamentally, the relevant time under section 426.30 is not the date the answer was filed, but the time the answer was served. (Code Civ. Proc., § 426.30, subd. (a).) Mahogany has not requested judicial notice of any material establishing when the answers were served. Mahogany therefore has not shown, from the face of the FAC or from judicially noticeable materials, that the compulsory cross-complaint bar defeats the claims asserted against it. The demurrer on this ground is accordingly **OVERRULED.**

<u>FIRST AND THIRD CAUSES OF ACTION: INTENTIONAL INTERFERENCE WITH CONTRACT AND BREACH OF CONTRACT</u>

The Third Cause of Action is asserted against Defendant Ledezma & Sons, Inc. ("L&S") for allegedly breaching an agreement to purchase PCHRG's assets for $1.45 million. (FAC, ¶¶ 54-56.) The Third Cause of Action is also asserted against Defendants German Ledezma and Darling Ampie as alleged alter egos of L&S. The First Cause of Action is asserted against Defendants David Szeto, Rylin Ortiz, and Mahogany for intentional interference with the same alleged asset purchase agreement. (FAC, ¶¶ 43-46.)

As a preliminary matter, to the extent the demurrer purports to seek relief on behalf of Ortiz, it is not considered. The moving papers indicate that Ortiz is not represented by the attorney filing the demurrer and has not appeared in this action. (See Feb. 3, 2026 Declaration of Edward C. Singer Jr., ¶ 2.)

As to L&S, Ledezma, Ampie, Szeto, and Mahogany (collectively for this section, "Defendants"), Defendants contend that no enforceable contract is alleged and, therefore, none of them can be liable for breach of contract or intentional interference with contract. Much of Defendants' argument concerning the alleged commingling of multiple contracts under one cause of action appears to address the original complaint rather than the FAC. The original complaint alleged breaches of both a lease agreement and an asset purchase agreement under one heading. (Apr. 25, 2025 Complaint, ¶¶ 48-56.) The FAC separates the two alleged contracts. (FAC, ¶¶ 48-57.)

Defendants further argue that the FAC fails to identify the specific subject matter of the sale, the closing date, the payment terms, or the formal parties to the alleged contract. (Demurrer, p. 6, ll. 26-27.) Defendants cite no authority requiring all of those details at the pleading stage. However, the broader point that the FAC does not adequately identify the contract or its essential terms is well taken.

In an action founded on a contract, the pleading must show whether the contract is written, oral, or implied by conduct, or allege facts from which the nature of the contract can be ascertained. (Code Civ. Proc., § 430.10, subd. (g); *Hills Transportation Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 706 [applying former statute].) If the pleading does not do so, it is subject to special demurrer. (Code Civ. Proc., § 430.10, subd. (g).) A breach of contract claim also must allege the existence of the contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Here, the FAC does not expressly allege whether the alleged asset purchase agreement between PCHRG and L&S was written, oral, or implied by conduct. (See FAC, passim.) Nor is the nature of the alleged agreement ascertainable from the FAC's allegations. Plaintiffs' opposition argues that writings and conduct show that a contract existed, but that argument conflates the existence of a contract with the nature of the contract. Both must be pleaded sufficiently to allow Defendants to determine the nature of the claim and whether to assert defenses, including any statute of frauds defense.

The uncertainty is material because the FAC also does not clearly allege the manner in which L&S breached the alleged asset purchase agreement. (FAC, ¶ 56 [alleging only that the contract was "breached"]; *Byrne v. Harvey* (1962) 211 Cal.App.2d 92, 105 [bare allegation that defendant failed and refused to perform was conclusory and lacking in particularity].) The FAC alleges that the asset purchase agreement was contingent on assignment of PCHRG's lease to L&S. (FAC, ¶¶ 26-27.) Given that alleged condition, the FAC does not clearly allege when payment became due, whether the condition occurred or was excused, or what specific contractual duty L&S breached. As a result, Defendants have not been given fair notice of the contract they allegedly breached or interfered with, or the manner of breach or interference.

For these reasons, the demurrer to the First and Third Causes of Action is *SUSTAINED WITH LEAVE TO AMEND*.

<u>SECOND CAUSE OF ACTION: BREACH OF CONTRACT</u>

Mahogany and Szeto demur to the Second Cause of Action as asserted by Elddin on the ground that Elddin was not a party to the lease agreement alleged to have been breached. Although the memorandum of points and authorities does not meaningfully address this issue, the Court must still rule on the general demurrer. (See *Dikkers v. Superior Court* (1948) 88 Cal.App.2d 816, 818.)

The existence of a contract between the plaintiff and the defendant is a necessary element of a breach of contract claim. (*Richman v. Hartley, supra,* 224 Cal.App.4th at p. 1186.) The FAC alleges a lease agreement between PCHRG and Mahogany. (FAC, ¶¶ 21, 49.) The FAC does not allege a lease agreement or other contract between Elddin and Mahogany. (See FAC, passim.)

Accordingly, the demurrer to the Second Cause of Action, as asserted by Elddin, is **SUSTAINED WITH LEAVE TO AMEND.**

<u>DISPOSITION</u>

The demurrer based on Code of Civil Procedure section 426.30 is **OVERRULED**.

The demurrer to the First Cause of Action for intentional interference with contract and the Third Cause of Action for breach of contract is **SUSTAINED WITH LEAVE TO AMEND**.

The demurrer to the Second Cause of Action for breach of contract, as asserted by Plaintiff Helen Nasser Elddin, is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiffs may file and serve a second amended complaint no later than 10 days after service of written notice of entry of the formal order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE: 8
25-CIV-04308 ARMEN H JALALIAN VS. JPMORGAN CHASE, N.A., ET AL

ARMEN H JALALIAN PRO SE
JPMORGAN CHASE, N.A.

PLAINTIFF ARMEN JALALIAN'S MOTION FOR ORDER REQUIRING DEFENDANT SAM OSTAYAN TO LODGE ORIGINAL EXECUTED DEEDS WITH THE COURT

TENTATIVE RULING:

Plaintiff's Motion for Order Requiring Defendant Sam Ostayan to Lodge Original Executed Deeds With the Court is **DENIED without prejudice**. Plaintiff has not shown a statutory or evidentiary basis for requiring originals to be lodged with the Court outside the ordinary discovery, subpoena, or trial-evidence process. The ruling is without prejudice to properly served discovery, a properly supported motion to compel, a subpoena duces tecum, or an evidentiary objection or request at trial.

Plaintiff's Motion for Order Requiring Certain Defendants to Lodge Original Instruments with the Court is also **DENIED without prejudice**. The difference between the Notice of Trustee's Sale amount and the later Notice of Default arrearage does not, by itself, establish that original instruments must be lodged with the Court, and California's nonjudicial foreclosure scheme does not require production of the original note or deed of trust as a condition of initiating foreclosure procedures.

The Court does not decide at this time whether any recorded instrument is authentic, valid, enforceable, void, voidable, or entitled to evidentiary admission. Those issues are preserved for proper motion, discovery, or trial proceedings.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE: 9
25-CIV-05899 PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS MARCIA A. WALLIS
FRANK RAMIREZ CANDICE S. NAM

DEFENDANTS FARMERS GROUP, INC., FARMERS INSURANCE COMPANY OF OREGON, FARMERS INSURANCE COMPANY OF WASHINGTON, FARMERS INSURANCE COMPANY, INC., FARMERS INSURANCE EXCHANGE, FARMERS INSURANCE OF COLUMBIA, INC., FARMERS NEW WORLD LIFE INSURANCE COMPANY, FIRE INSURANCE EXCHANGE, MID-CENTURY INSURANCE COMPANY AND TRUCK INSURANCE EXCHANGE'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants Farmers Insurance Exchange, Fire Insurance Exchange, Truck Insurance Exchange, Mid-Century Insurance Company, Farmers New World Life Insurance Company, Farmers Insurance Company, Inc., Farmers Insurance Company of Oregon, Farmers Insurance Company of Washington, and Farmers Insurance of Columbus, Inc.'s demurrer to the First, Second, Eighth, Tenth, and Eleventh Causes of Action in Plaintiff's First Amended Complaint ("FAC") is **SUSTAINED IN PART WITH LEAVE TO AMEND** and **OVERRULED IN PART** pursuant to Code of Civil Procedure section 430.10, subdivision (e), as follows.

The demurrer to the First Cause of Action for Wrongful Termination in Violation of Public Policy is **SUSTAINED WITH LEAVE TO AMEND.** The demurrer to the Second Cause of Action for Violation of Penal Code section 632 is **SUSTAINED WITH LEAVE TO AMEND**. The demurrer to the Eighth Cause of Action for Promissory Estoppel is **SUSTAINED WITH LEAVE TO AMEND**. The demurrer to the Tenth Cause of Action for Breach of Contract and the Eleventh Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing is **OVERRULED** as to the Farmers Defendants generally, but **SUSTAINED WITHOUT LEAVE TO AMEND** as to Defendant FGI only.

FIRST CAUSE OF ACTION FOR WRONGFUL TERMINATION

The elements of a cause of action for wrongful termination in violation of public policy are: (1) an employer-employee relationship; (2) termination of the plaintiff's employment; (3) a termination substantially motivated by a violation of public policy; and (4) resulting harm. (*McDoniel v. Kavry Management, LLC* (2025) 114 Cal.App.5th 949, 962-963; *Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 973.) To support a tortious discharge claim, the policy must be supported by constitutional or statutory provisions, inure to the benefit of the public rather than merely serve private interests, have been articulated at the time of discharge, and be fundamental and substantial. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.)

Plaintiff alleges that, in or about August 2024, Defendant Ideal Traits unknowingly recorded him; that a Farmers HR manager later played the recording on a call with Plaintiff, Defendant Ramirez, and Farmers representative Edwin Kerr; and that Farmers then terminated Plaintiff for cause based on the recording. (FAC, ¶¶ 76, 82-86.) Defendants argue that this cause of action fails because the FAC does not allege that Farmers made the recording and because Penal Code section 632 does not, on these pleaded facts, supply a sufficient public policy to support the claim. Plaintiff responds that Farmers knowingly exploited and relied on an illegally recorded communication in connection with his termination.

The sufficiency of the asserted public policy is a question of law. The FAC does not allege facts showing that Farmers itself violated Penal Code section 632 by intentionally eavesdropping on or recording a confidential communication without consent. Nor does the FAC identify authority establishing that a termination based on a recording allegedly made unlawfully by a third party, without more, violates a fundamental public policy sufficient to support a Tameny claim. To the extent Plaintiff contends Farmers violated a different statutory provision by later using, disclosing, or replaying the recording, that theory is not adequately pleaded in the FAC.

Accordingly, the demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SECOND CAUSE OF ACTION FOR VIOLATION OF PENAL CODE SECTION 632

Penal Code section 632 prohibits a person from intentionally using an electronic amplifying or recording device to eavesdrop upon or record a confidential communication without the consent of all parties. (Pen. Code, § 632, subd. (a).) Subdivision (d) provides an evidentiary exclusion rule for evidence obtained as a result of eavesdropping upon or recording a confidential communication in violation of section 632. (Id., subd. (d).) Penal Code section 637.2 provides a civil remedy for a person injured by a violation of Chapter 1.5 of Title 15 of Part 1 of the Penal Code, but it does not itself define the underlying substantive violation. (Pen. Code, § 637.2, subd. (a).)

The FAC alleges that Ideal Traits recorded Plaintiff without his knowledge or consent. (FAC, ¶ 76.) As to the Farmers Defendants, Plaintiff alleges that they used the recording to launch an investigation and ultimately as a basis to terminate Plaintiff. (FAC, ¶¶ 104, 113.) Those allegations do not state that Farmers used an electronic device to eavesdrop upon or record Plaintiff's confidential communication. The FAC therefore does not state a violation of Penal Code section 632 by Farmers.

Plaintiff argues in opposition that Farmers may be liable under Penal Code sections 637 and 637.2. However, the FAC does not plead a section 637 theory or allege facts specifically directed to each element of that statute. Plaintiff may not avoid demurrer by relying on an unpleaded statutory theory raised for the first time in opposition. Because Plaintiff may be able to plead an applicable statutory theory, leave to amend is appropriate.

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

EIGHTH CAUSE OF ACTION FOR PROMISSORY ESTOPPEL

The elements of promissory estoppel are: (1) a clear promise; (2) reliance; (3) substantial detriment; and (4) damages measured by the extent of the obligation assumed but not performed. (*Coyote Aviation Corp. v. City of Redlands* (2025) 111 Cal.App.5th 955, 987; *Toscano v. Greene Music* (2004) 124 Cal.App.4th 685, 692.) The promise must be clear and unambiguous, and the reliance must be reasonable and foreseeable. (*Clarke v. Yu* (2026) 119 Cal.App.5th 19, 38-39.)

The FAC alleges that, after the termination meeting and receipt of the termination notice, Defendant Ramirez and Farmers promised Plaintiff that he could sell his book of business and/or receive contract value if he resigned and obtained a qualified buyer. Plaintiff alleges that, based on those promises, he did not appeal his termination within 10 days. (FAC, ¶ 173.)

As pleaded, the alleged promise is conditional and incomplete. The FAC does not allege a clear and unambiguous promise that Farmers would approve a sale, pay contract value, or waive any contractual conditions regardless of the approval rights and terms in the Agent Appointment Agreement. Rather, the alleged promise depended on Plaintiff resigning, obtaining a qualified buyer, and obtaining approval under the governing agreement. Those allegations do not adequately plead a clear promise sufficient to support promissory estoppel.

Accordingly, the demurrer to the Eighth Cause of Action is *SUSTAINED WITH LEAVE TO AMEND*.

TENTH CAUSE OF ACTION FOR BREACH OF CONTRACT

The elements of a breach of contract claim are: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages resulting from the breach. (*Coyote Aviation Corp. v. City of Redlands, supra*, 111 Cal.App.5th at p. 982; *Naranjo v. Doctors Medical Center of Modesto, Inc.* (2025) 111 Cal.App.5th 408, 439.)

Plaintiff alleges an agreement to act as a Farmers agent, that the agreement permitted termination only for cause, that Farmers terminated him for cause based on the recording made by Ideal Traits, and that termination based on the allegedly illegal recording breached the contract. (FAC, ¶¶ 191-196.) Plaintiff also alleges that Farmers breached the contract by telling him he could sell his business and/or receive contract value, later rescinding approval of the sale after Plaintiff waived his right to appeal the termination, and withholding money from his final paycheck for "Miscellaneous" charges when the contract limited deductions to client chargebacks. (FAC, ¶¶ 204, 208.)

Defendants argue that the allegations concerning the sale of the business fail because the AAA restricted sale of Plaintiff's agency to a family member. However, the FAC alleges that Farmers approved the sale and later rescinded that approval. At the pleading stage, and in light of the additional allegation concerning withheld monies, the Court cannot determine as a matter of law that Plaintiff cannot state a breach of contract claim against the Farmers Defendants generally.

Accordingly, the demurrer to the Tenth Cause of Action is **OVERRULED** as to the Farmers Defendants generally, subject to the ruling below as to Defendant FGI.

ELEVENTH CAUSE OF ACTION

Every contract contains an implied covenant of good faith and fair dealing. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349.) The implied covenant prevents a contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement, but it cannot impose substantive duties or limits beyond those incorporated in the specific terms of the parties' contract. (*Ibid.; Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1393-1395.)

For the same reasons stated regarding the breach of contract claim, the FAC pleads facts sufficient at the demurrer stage to support an implied covenant claim against the Farmers Defendants generally. Plaintiff alleges that Farmers exercised contractual discretion and termination-related rights in a manner that deprived him of contractual benefits, including the ability to sell the book of business, receive contract value, and avoid improper deductions. Whether Plaintiff can prove bad faith, and whether the challenged conduct was permitted by the express terms of the AAA, cannot be resolved on this demurrer on the present pleadings.

Accordingly, the demurrer to the Eleventh Cause of Action is *OVERRULED* as to the Farmers Defendants generally, subject to the ruling below as to Defendant FGI.

DEFENDANT FGI

Defendants separately argue that the Tenth and Eleventh Causes of Action fail as to Defendant FGI because FGI is not a party to the AAA. The AAA does not list FGI as a signatory. (FAC, Ex. A.) Plaintiff does not address this issue in opposition and does not identify any basis to impose contract or implied covenant liability on FGI despite its nonsignatory status.

Accordingly, the demurrer to the Tenth and Eleventh Causes of Action is **SUSTAINED WITHOUT LEAVE TO AMEND as to Defendant FGI only**.

DISPOSITION

The demurrer to the First Cause of Action for Wrongful Termination in Violation of Public Policy, Second Cause of Action for Violation of Penal Code section 632, and Eighth Cause of Action for Promissory Estoppel is **SUSTAINED WITH LEAVE TO AMEND**.

The demurrer to the Tenth Cause of Action for Breach of Contract and Eleventh Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing is **OVERRULED** as to the Farmers Defendants generally and **SUSTAINED WITHOUT LEAVE TO AMEND as to Defendant FGI only.**

Plaintiff may file and serve a second amended complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 10
26-CIV-00542 **DANIEL TILLAN VS. STATE FARM MUTUAL AUTOMOTIVE INSURANCE COMPANY**

DANIEL TILLAN **WILLIAM E. LOMBARDINI**
STATE FARM MUTUAL AUTOMOTIVE INSURANCE COMPANY

PLAINTIFF DANIEL TILLAN'S MOTION TO (1) COMPEL UNDERINSURED (UIM) MOTORIST ARBITRATION; (2) APPOINT ARBITRATOR; (3) SET ARBITRATION DATE AND/OR ARBITRATION COMPLETION DEADLINE

TENTATIVE RULING:

Petitioner Daniel Tillan's Motion to Compel Underinsured Motorist Arbitration, Appoint Arbitrator, and Set Arbitration Date and/or Arbitration Completion Deadline is **GRANTED IN PART**.

The parties are ordered to proceed with underinsured motorist arbitration. Attorney Michael Ney is confirmed and appointed as the neutral arbitrator, there being no dispute in the record that the parties selected him.

No later than 10 calendar days after service of this order, counsel shall contact Mr. Ney's office, provide all available dates, and cooperate in setting the earliest mutually available arbitration hearing date. The arbitration shall be completed, and the award issued, no later than **120 days from the date of this order**, unless that deadline is extended by written stipulation of the parties or further order of the Court.

The request for an order requiring the arbitration hearing itself to occur within 60 days is **DENIED without prejudice** to the extent no confirmed arbitrator availability has been provided. The Court does not decide whether State Farm acted in bad faith, breached the implied covenant, or unreasonably delayed the claim; those issues are not necessary to the present ruling.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE: 1
26-UDL-00477 **CLAUDIO S. NICOLOSI VS. CHRISTINA NICOLOSI, ET AL**

CLAUDIO S. NICOLOSI	**STEVEN T. NAUMCHIK**
CHRISTINA NICOLOSI	**PRO SE**

DEFENDANT CHRISTINA NICOLOSI'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Christina Nicolosi's demurrer to Plaintiff Claudio S. Nicolosi's First Amended Complaint ("FAC") is **OVERRULED**. Defendant's motion to strike is **DENIED**.

BACKGROUND

This is an unlawful detainer action involving the real property located at 708 Prescott Lane, Foster City, California 94404, San Mateo County (the "subject property"). Plaintiff alleges that he owns the subject property. (FAC, ¶ II.)

Plaintiff alleges that, on September 1, 2016, he gave Defendants permission to occupy the subject property. Plaintiff further alleges that, on February 13, 2026, he served Defendants with written notice terminating their tenancy and/or permission to occupy the subject property and requiring Defendants to deliver possession on or before April 14, 2026. (FAC, ¶ V, Ex. A.) Defendants did not vacate, and this action followed.

Defendant demurs under Code of Civil Procedure section 430.10, subdivisions (e) and (f), contending the FAC does not allege facts sufficient to state an unlawful detainer claim and is uncertain. Defendant also moves to strike the FAC, contending it is a sham pleading, is improperly verified, and improperly seeks daily holdover damages. Plaintiff opposes, contending the FAC adequately pleads unlawful detainer, is not uncertain, was properly amended and verified, and sufficiently alleges fair market rental value and damages.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading, not the truth of the pleaded facts or the plaintiff's ability to prove them. The Court considers only defects appearing on the face of the pleading or from matters that may be judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) A general demurrer admits the truth of all material factual allegations properly pleaded, but the Court does not assume the truth of contentions, deductions, or conclusions of law. (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

A special demurrer for uncertainty is disfavored and is strictly construed, even where a pleading is uncertain in some respects, because ambiguities can generally be clarified through discovery. A demurrer for uncertainty is properly sustained only when the pleading is so unintelligible that the responding party cannot reasonably determine what must be admitted or denied. (Code Civ. Proc., § 430.10, subd. (f); *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

An unlawful detainer complaint must be verified, set forth the facts on which the plaintiff seeks to recover, describe the premises with reasonable certainty, and state the method used to serve the notice of termination on which the complaint is based. (Code Civ. Proc., § 1166, subd. (a)(1)-(3), (5).) In a residential unlawful detainer action, the plaintiff must attach the notice or notices of termination on which the complaint is based and any written lease or rental agreement, unless a statutory exception applies. (Id., subd. (d)(1).)

A tenant of real property for a term less than life is guilty of unlawful detainer when the tenant continues in possession after expiration of the term for which the property is let, without the landlord's permission, after the tenancy has been terminated as required by law. (Code Civ. Proc., § 1161, subd. 1.)

On a motion to strike, the Court may strike any irrelevant, false, or improper matter inserted in a pleading, or any pleading not drawn or filed in conformity with California law, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may also reach an improper demand for relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b)(3).)

DISCUSSION

The demurrer is **OVERRULED**. The FAC identifies the subject property, alleges Plaintiff's ownership and right to possession, alleges that Defendants were permitted to occupy the subject property, alleges service of a written termination notice on February 13, 2026, attaches the notice, alleges Defendants failed to deliver possession after the notice period expired, and alleges resulting damages. (FAC, ¶¶ II, V, VII-VIII, Ex. A.) Those allegations are sufficient at the pleading stage to state the basis for an unlawful detainer claim under Code of Civil Procedure sections 1161 and 1166.

The FAC also is not fatally uncertain. Defendant argues that the FAC changed the original complaint's reference to an oral month-to-month tenancy to "permission for defendant to occupy," and that this change makes the pleading uncertain or internally inconsistent. The Court is not persuaded. At the pleading stage, the alleged permission to occupy is not so inconsistent with a tenancy, license, or other occupancy relationship terminable by notice that Defendant cannot reasonably respond. The pleading gives Defendant adequate notice of the property, the alleged basis for possession, the notice served, the alleged termination date, and the relief sought.

The Court also does not find a basis to apply the sham pleading doctrine. The sham pleading doctrine permits a court to disregard allegations in an amended pleading that are inconsistent with prior allegations when the amendment appears designed to avoid defects in the prior pleading and no satisfactory explanation is given. The doctrine is not applied mechanically and is not intended to prevent a party from correcting ambiguous or erroneous allegations. (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743; *Dones v. Life Insurance Company of North America* (2020) 55 Cal.App.5th 665, 688.) Here, the change from "oral agreement" or "month-to-month tenancy" to "permission to occupy" does not create an irreconcilable factual contradiction on the face of the FAC. Nor does it show, on the face of the pleadings, that no unlawful detainer claim can be stated truthfully. Defendant may challenge the factual and legal effect of Plaintiff's alleged occupancy arrangement at the appropriate later stage, but the alleged wording change does not support sustaining the demurrer or striking the FAC.

Defendant also challenges the notice attached to the FAC, arguing it is facially void or internally inconsistent because it references Civil Code section 827, rent-limit and just-cause exemptions, and a just-cause ground for termination. The Court does not decide on demurrer whether Plaintiff ultimately can prove compliance with all statutory notice, just-cause, exemption, or withdrawal-from-market requirements. The issue at this stage is whether the FAC and attached notice are so defective on their face that the claim cannot proceed. They are not. The notice identifies the property, the occupants, the termination date, and the stated basis for termination, and the FAC alleges service and continued possession after expiration of the notice period. Those allegations are sufficient to withstand demurrer.

Defendant's verification argument also does not defeat the FAC at this stage. Code of Civil Procedure section 1166, subdivision (a)(1), requires an unlawful detainer complaint to be verified. Code of Civil Procedure section 446 permits attorney verification when the party is absent from the county where the attorney has his or her office, when the party is otherwise unable to verify, or when the facts are within the attorney's knowledge. The FAC contains an attorney verification. Defendant's argument that Plaintiff personally signed a different Judicial Council form on the same day raises a factual issue that does not establish, on the face of the FAC, that the verification is invalid or that the pleading should be stricken.

The motion to strike the daily rental damages allegation is denied. Plaintiff alleges a daily fair market rental value of $183.33. (FAC, ¶ VIII.) In an unlawful detainer action, the plaintiff may seek damages for the reasonable rental value of the premises during the period of unlawful detention. (See Code Civ. Proc., § 1174, subd. (b); *Superior Motels, Inc. v. Rinn Motor Hotels, Inc.* (1987) 195 Cal.App.3d 1032, 1068.) Defendant's disagreement with the alleged daily value does not make the allegation irrelevant, false, or improper on the face of the pleading. The amount and evidentiary support for any reasonable rental value are issues for proof, not grounds to strike the damages allegation at the pleading stage.

Accordingly, Defendant Christina Nicolosi's demurrer to the FAC is **OVERRULED***.* Defendant's motion to strike is **DENIED**. Defendant shall file and serve an answer to the FAC within five calendar days after service of notice of entry of the order, unless the Court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).)

Any party who intends to contest the tentative ruling must email Department 2 at Dept2@sanmateocourt.org, with a copy to all other parties, by 4:00 p.m., stating without argument the portion or portions of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order repeating verbatim the tentative ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM
LINE: 2

26-UDL-00477 **CLAUDIO S. NICOLOSI VS. CHRISTINA NICOLOSI, ET AL**

CLAUDIO S. NICOLOSI	**STEVEN T. NAUMCHIK**
CHRISTINA NICOLOSI	**PRO SE**

DEFENDANT CHRIISTINA NICOLOSI'S MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Per the Court's ruling on the demurrer to the FAC, Defendant's Motion to Strike is **DENIED**.

Posted: 3:00 P.M.